

Court No. - 29

Case :- WRIT - C No. - 6954 of 2013

Petitioner :- Gamlesh Kumar Katiyar

Respondent :- State Of U.P. Thru Secy. And Others

Petitioner Counsel :- Dheeraj Kumar Dwivedi

Respondent Counsel :- C.S.C.,Dr. S.K. Yadav

Hon'ble Sunil Ambwani,J.

Hon'ble Bharat Bhushan,J.

Heard learned counsel for the parties.

The petitioner has purchased House No.LIG 3117, Awas Vikas-3, Kalyanpur, Kanpur Nagar on 30.6.2010 and had applied for a new electricity connection. It is submitted that the application has not been entertained on account of some old dues. Learned counsel for the petitioner submits that there cannot be any old dues as the previous allottee was given possession of the house on 9.11.2010, and in any case he is not liable to pay the dues of previous occupants.

We do not propose to interfere in the disputed questions of fact regarding the validity of the old dues. The procedure for applying for new connection is provided in Clause 4.3 of the U.P. Electricity Supply Code and which includes payment of old dues.

The petitioner will also be given the details of the old dues by the respondents, which he may pay under protest, on which his new connection will be considered in accordance with law.

The writ petition is **disposed of** with these directions.

Order Date :- 7.2.2013

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